

Federal Maritime Commission

MAVL Capital, et al.

v.

MARINE TRANSPORT LOGISTICS, INC.,
DIMITRY ALPER

Docket No. 16-16

**RESPONDENT'S RESPONSE TO
COMPLAINANTS' MOTION TO
ENLARGE TIME**

On behalf of the Respondent (Marine Transport Logistics, Inc.), I am respectfully submitting the following response to Complainants' motion to enlarge time to file briefs.

On February 5, 2021, the Order Denying Complainants' Motion for Discovery Related Sanctions sated that "At Complainants' request, this schedule is designed to avoid conflict with the briefing schedule in FMC Docket No. 20-12. However, if extensions or changes to the schedule are requested in either proceeding, such consideration will not be provided..."

The movant, Mr. Nussbaum, claims that he believed that he was required to quarantine due to possible exposure, which is why he could not travel to his office to complete the brief. As an initial matter, the movant does not explain why he could not travel to get a rapid test, which takes about five minutes, which is what everyone normally does if faced with a possible exposure.

Aside from that, what troubles me the most, is that it appears that Mr. Nussbaum was able to complete and file another motion on the same day when he claims he could not travel to his office, namely a motion to compel on Docket 20-12 – this is the case where I have produced

volumes of documents and Mr. Nussbaum had produced zero documents and has not responded to my email as to such. Just to briefly quote from Mr. Nussbaum's motion on Docket 20-12 which he filed on the day of his quarantine: "failed and refused to respond to document demands; and have generally frustrated and obstructed all reasonable attempts to move forward with discovery in this matter." This is a big statement to make by somebody who has not produced a single document in response to my request for documents.

The motion on Docket 16-16 was made on Monday at 11:23pm, and the motion on Docket 20-12 was made at 11:48PM, on February 22, 2021. Mr. Nussbaum should have disclosed and explained in his motion to enlarge how it is he was able to complete and file a motion on a different docket without going to his office.

I am not necessarily objecting to a brief extension of time to file briefs, but I felt it necessary to submit this response as Mr. Nussbaum, in his previous countless motions for sanctions and unsubstantiated allegations before the Commission, not only did he not disclose in this motion that he was able to file on a different docket while being on quarantine, but that he filed that motion just minutes apart from this motion. I submit that Mr. Nussbaum should have filed what he could by the deadline directed and then made an application to supplement the record because if his motion to enlarge is denied, he cannot file a brief at all.

Respectfully Submitted,

February 26, 2021



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